

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,  
MUMBAI.**

**COMPLAINT NO: CC006000000078530**

Pankaj Manohar Bhargalkar.

...Complainant.

**Versus**

M/s. Om sai Infra & Om sai Group.

...Respondents.

(Sai Kanishk Phase II)

MahaRERA Regn: P51700012436.

**Coram:** Shri B.D. Kapadnis,  
Hon'ble Member II.

**Appearance:**

Complainant: In person.

Respondents: Absent.

**Final Order**

**9<sup>th</sup> October 2019.**

The complainant has filed this complaint under Section 18 of RERA for claiming interest on his investment for delayed possession and under Section 19 (3) for claiming possession of his booked flat no. 701, Building No. B-6, Florida, Sai Kanishk situated at Village Dawle, Diva.

2. The complainant relies upon the agreement for sale which shows that the respondents agreed to hand over the possession of his booked flat on or before December 2018. It is also mentioned therein that if the respondents fail to hand over the possession of the booked flat on said date, there shall be the reasonable extension of 12 months. Thus, the agreed date of possession is December 2019 which has not been crossed. Hence, I find that the complainant has no cause of action to claim relief under Section 18 & 19.

3. The complaint is dismissed.

Place: Mumbai.

Date: 09.10.2019.

  
9.10.19.  
( B.D. Kapadnis )  
Member II,  
MahaRERA, Mumbai.